

		the trial court fails to make the required findings, the order is deficient and cannot support sealing”). Clerk to give notice.
6	Cruz v. Pacific Life Insurance Company 2025-01517146	Off calendar.
7	Davis v. Insight Psychology and Addiction, Inc. 2023-01319920	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of an \$355,000 class action and PAGA settlement. In the October 16, 2025 order (ROA 135), the court stated that the “Release by Participating Class Members” provision in paragraph 5.2 was overbroad. The court stated that the release of the class members’ claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. In the January 29, 2026 order (ROA 147), the court stated that the “Release by Participating Class Members” in the amendment to the settlement agreement remained overbroad. The court stated that, in the second sentence, the phrase beginning with “and all other claims” to the end of the sentence should be removed. Plaintiff’s counsel states that defendant has declined to make the revision to the “Release by Participating Class Members” ordered by the court in the January 29, 2026 order and has otherwise not cooperated with plaintiff’s efforts to prepare the supplemental filings. Supp. Manus Decl. (ROA 158) ¶¶ 3-8. In addition to the above, the parties have not submitted a revision of paragraph 7.8.4 as ordered in the January 29, 2026 order (ROA 147, No. 2) nor have they submitted a revised notice (ROA 147, Nos. 5, 6) or a revised proposed order (ROA 147, Nos. 7, 8). Under these circumstances, the court has no alternative but to deny without prejudice plaintiff’s motion for preliminary approval. A status conference is scheduled for <u>August 27, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. If plaintiff files another motion for preliminary approval before August 27, 2026, the court may vacate the status conference. If the case remains unresolved as of August 27, 2026, the parties’ joint status conference statement should set forth, <i>inter alia</i>, their proposed schedule(s) for briefing and hearing the class certification motion. Plaintiff to give notice.
8	Gershfeld v. Home Depot U.S.A., Inc., et al. 2024-01409225	Off calendar.

9	Herrick v. TTE Technology, Inc. 2025-01535413	<u>Defendant TTE Technology, Inc.’s Demurrer to First Amended Class Action Complaint</u> Defendant TTE Technology, Inc. d/b/a TCL North America (TCL) demurs to the six causes of action in plaintiff Stephan Herrick’s first amended class action complaint. For the following reasons, TCL’s demurrer is sustained in part and overruled in part. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. <i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05. Questions of fact cannot be decided on demurrer. <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. <i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7. Plaintiff alleges claims individually and on behalf of a proposed class of California residents who purchased TCL QLED televisions. Plaintiff alleges TCL’s QLED televisions do not have the advertised QLED technology or include “negligible amounts” of the technology so as to not provide the advertised benefits. First Amended Complaint ¶ 3. Plaintiff alleges TCL advertises its televisions include QLED technology in order to charge a premium price to consumers. <i>Id.</i> ¶ 6. <i>First, second and third causes of action</i> Plaintiff’s <u>first cause of action</u> alleges violation of the Unfair Competition Law (UCL), Business & Professions Code section 17200 et seq. The UCL prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.” The UCL’s scope is broad and does not proscribe specific practices but defines “unfair competition” to include “any unlawful, unfair, or fraudulent business act or practice.” <i>Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.</i> (1999) 20 Cal.4th 163, 180. Because the statute is written in the disjunctive, there are three varieties of unfair competition: (1) unlawful acts or practices; (2) unfair acts or practices; and (3) fraudulent acts or practices. <i>Id.</i> Plaintiff alleges TCL violated the UCL (i) by violating the False Advertising Law and the Consumer Legal Remedies Act; (ii) by “making statements about the quantum dot technology used in its televisions that are likely to deceive consumers and deceived plaintiff”; (iii) because “the acts and practices set forth in the complaint offend established policy and harm plaintiff and the class as well as competition”; and (iv) because “the acts and practices set forth in the complaint regarding their misrepresentation and untrue statements to plaintiff and the class are intended to deceive them and influence the plaintiff’s and the class members’ decision
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